

The M.P. Municipalities (Extent of Wards) Rules, 1994

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State of Madhya Pradesh - Act

The M.P. Municipalities (Extent of Wards) Rules, 1994

MADHYA PRADESH

India

The M.P. Municipalities (Extent of Wards) Rules, 1994

Rule THE-M-P-MUNICIPALITIES-EXTENT-OF-WARDS-RULES-1994 of 1994

Published on 22 July 1994

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The M.P. Municipalities (Extent of Wards) Rules, 1994

Published vide Notification No. 80-A-18-3-94, dated 22-7-1994, M.P. Rajpatra (Asadharan), dated 22-7-1994

In exercise of the powers conferred by Section 355 of the Madhya Pradesh Municipalities Act, 1961 (

No. 37 of 1961

), the State Government hereby makes the following rules to regulate the extent of wards, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Madhya Pradesh Municipalities (Extent of Wards) Rules, 1994.

(2)

These rules shall come into force with effect from the date of their publication in the "Madhya Pradesh Gazette."

2.

Definitions.

- In these rules, unless the context otherwise requires :-

(a)

"Act" means the Madhya Pradesh Municipalities Act, 1961 (No. 37 of 1961

);

(b)

"Section" means section of the Madhya Pradesh Municipalities Act, 1961;

(c)

"Municipal" means any Municipal Council or Nagar Panchayat constituted under the Act;

(d)

"Municipal area" means the territorial area of any Municipal Council or Nagar Panchayat;

(e)

"Population" means the population as ascertained at the last preceding census of which the relevant figures have been published;

(f)

"Chief Municipal Officer" means the Chief Municipal Officer of the Municipal Council or Nagar Panchayat as defined in the Act.

3.

Division of Municipal area into wards.

(1)

A Municipal area shall be divided into wards in number equal to the number of wards as determined by the State Government under sub-section (1) of Section 29.

(2)

The population of every' Municipal area on dividing by the number of wards as determined for that Municipal area, the quotient so arrived shall be the average population of a ward in which a variation upto 15 per cent may be allowed.

(3)

The area comprised within every ward shall be compact.

4.

Extent of wards.

- The four dimensional extent of every' ward shall be determined as follows :-

(1)

In the North

(2)

In the East

(3)

In the South

(4)

In the West

5.

Number and the name of wards.

- Every ward shall be given its number and such numbers shall be in a serial order. Every' ward shall be given a name also.

6.

Preparation of proposal to determine the extent of wards.

(1)

The proposal to determine the extent of wards shall be prepared by the Deputy Collector as nominated by the Collector of the District in which the Municipality is situated and for this purpose, any information as called for by such nominated Deputy Collector from Chief Municipal Officer for which the Chief Municipal Officer shall be bound to make available such information within the specified time, otherwise such nominated Deputy Collector may prepare the proposal at the

cost of Municipality concerned.

(2)

The following information shall be regarding extent of wards included in the proposals as prepared by the Deputy Collector :-

(i)

four directions of the proposed wards;

(ii)

Map showing all the four dimensions of every proposed ward in such a way that the boundaries of each ward may be visible separately;

(iii)

Statement regarding population in which the total population of the Municipal area as per the figures published of the last census, total population of Scheduled Castes and of Scheduled Tribes, the total number of wards as determined by the State Government for concerning Municipal area and on that basis the average population of each ward;

(iv)

The population of each of the proposed ward and the figures of population of Scheduled Castes and Scheduled Tribes therein.

7.

Preliminary publication of determination of the extent of wards.

- A notice regarding the proposal as prepared under Rule 6 shall be published by the Deputy Collector in the local newspapers in the form as appended to these rules and the copies of the notice shall be pasted on the notice board of the office of the Collector as well as of the office of the Municipality and on the conspicuous places in the wards for the information of the general public.

8.

Disposal of the objections/suggestions as received and final publication.

- Any citizen may submit his objection or suggestion in regard to the proposed limits of the wards within seven days from the date of publication of the notice by the Deputy Collector which shall be forwarded to the Collector of the District. The Collector after considering the opinion of the Deputy Collector shall take the decision on the objections and suggestions received and shall publish the notification in the Madhya Pradesh Gazette in regard to the extent of the wards as determined. A notification published in the "Madhya Pradesh Gazette" under these rules shall be conclusive evidence that the extent of the wards have finally been determined for the purpose of sub-section (1) of Section 29.

9.

Rules to be general.

- These rules shall be general for all the Municipal Councils and Nagar Panchayats.

10.

Repeal.

- All rules, bye-laws and orders, if any, on this subject in force immediately before the commencement of these rules, shall be repealed.

Form

[See Rule 71

Notice of Publication of Proposal Regarding Extent of Wards of Municipal Area Notice

It is hereby informed that proposal for dividing the area of Municipal Council/Nagar Panchayat..... into..... wards and determining the extent of each ward are prepared, which are available for inspection during office time in the office of the Municipal Council/Nagar Panchayat.....

Any objection or suggestion regarding the aforesaid proposal may be submitted to the Deputy Collector Distt.....within seven days, from the date of this notice.

Place.....

Date

Deputy Collector.....

District.....

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